

22STCV01937 22STCV01937

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C07%2F22%2F2026

Source SHA-256: 84f0f0706fff5088e91e56304e6b8f473dca6a4a8c7fd3cbcfadb12fe91c51e8

Case Number: 22STCV01937 Hearing Date: July 22, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/22/2026

CASE NUMBER: 22STCV01937

CASE NAME: JAYMEN TINSLEY, et al. vs THE LOFTS ON LA BREA, A CAL...

MOVING PARTY: Plaintiffs Jaymen Tinsley and Jayquan

Crittenden

OPPOSING PARTY: Defendants LA BREA REGENCY LLC

(erroneously sued as THE LOFTS ON LA BREA); SABET MANAGEMENT COMPANY INC.;

EDWARD SABETFARD; ANDRE M. SABETFARD; ANDRE M SABET MANAGEMENT CORPORATION

PROCEEDING: Motion to tax costs

RULING SUMMARY: Plaintiffs Jaymen Tinsley and Jayquan

Crittenden's Motion to Tax is granted.

The Court taxes the following items: (1)

Motion and Filing Fees in the amount of \$ 2,253.57; (2) Deposition Fees in the amount of \$18,400.05; and (3) Service of Process Fees in the amount of \$1,297.49.

Background

On June

18, 2022, Jaymen Tinsley and Jayquan Crittenden (collectively "Plaintiffs") filed a Complaint against The Lofts on La Brea and La Brea Regency, LLC, alleging one cause of action for Negligence. On August 10, 2022, La Brea Regency, LLC ("La Brea Regency") filed its Answer to the Complaint. La Brea Regency stated it was erroneously sued as separately named The Lofts on La Brea.

On

August 26, 2022, Plaintiff amended the fictitious name of Doe 1 to Sabet Management Company Inc. ("Sabet Management").

On January 01, 2023, Plaintiff amended the fictitious name of Doe 2 to Andre M Sabet Management Corporation ("Andre Management"). On January 12, 2023, Plaintiff amended the fictitious name of Doe 3 to Andre M. Sabetfard ("Andre")^[1].

On January 17, 2023, Plaintiff amended the fictitious name of Doe 4 to Edward Sabetfard ("Edward"). On January 24, 2023, Plaintiff amended the fictitious name of Doe 5 to Alfred Sabetfard ("Alfred").

On January 25, 2023, La Brea Regency filed a Cross-Complaint against Abdullah Mohammad; Isabella Bynum; and Raimi Stelly ("Stelly"). The Cross-Complaint alleges six causes of action for (1) Implied Indemnity, (2) Express Indemnity, (3) Declaratory Relief, (4) Contribution, (5) Breach of Contract, and (6) Negligence.

On February 17, 2023, Defendants Sabet Management, Edward, Andre, and Andre Management filed their Answer to the Complaint. On February 17, 2023, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management filed a Cross-Complaint against Moes 1 through 50. On August 10, 2023, Stelly filed her Answer to the Cross-Complaint.

On

March 6, 2025, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management filed a Motion for Summary Judgment, which was granted.

On

April 16, 2025, Alfred filed his Answer to the Complaint.

On

October 15, 2025, judgment was entered for La Brea Regency, Sabet Management, Edward, Andre, and Andre Management.

On

January 9, 2026, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management filed their Costs Memorandum.

On April 03, 2026, Plaintiffs filed this Motion to Tax. On July 9, 2026, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management filed their Opposition. On July 15, 2026, Plaintiffs filed their Opposition.

LEGAL

STANDARD

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)

DISCUSSION

As an

initial matter, “[a]ny notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).” (Rules of Court, Rule 3.1700(b)(1).)

Here,

the Costs Memorandum was served on January 29, 2026 by mail. Following Cal. Rules of Court, 15 days from January 29, 2026 is February 13, 2026. Plaintiffs did not file their Motion to Tax Costs until April 03, 2026.

Plaintiffs

assert that the parties stipulated to allow additional time to file this motion. Cal. Rules of Court, Rule 3.1700(b)(3) provides: “The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.”

The

stipulation is dated March 30, 2026. The Court considers the motion as La Brea Regency, Sabet Management, Edward, Andre, and Andre Management, the parties that would suffer the most prejudice, considered and agreed to the stipulated date.

Plaintiffs

seek to tax (1) filing and motion fees in the amount of \$5,284.14 as this figure is not itemized; (2) deposition costs in the amount of \$44,112.30 as the amount is excessive and no deponent is identified, no transcript is identified, no invoice is identified, and no line item is identified; and (3) service of process fees in the amount of \$6,927.81 as the amount is excessive and there is no itemization presented.

La Brea

Regency, Sabet Management, Edward, Andre, and Andre Management assert that their filing and motion fees correctly total \$3,030.57. (See Opp. 3:19-20.) Invoices are provided in Exhibit 2 that show a total amount of \$3,030.57 [\$27.81 (Stip., Cross-Complaint, Summons, E-filing confirmation, receipt) + \$1,795.11 (Answer, E-filing confirmation, receipt) + \$454.22 (Opp. re: Srog, RFD, E-filing confirmation, receipt) + \$68.91 (Ex Parte App., proposed order, E-filing confirmation, receipt) + \$161.39 (posting of jury fees, E-filing confirmation, receipt) + \$454.22 (Answer, demand for jury trial, E-filing confirmation, receipt) + \$68.91 (Ex Parte App., proposed order, E-filing confirmation, receipt)]. Regarding deposition costs, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management present that their filing and motion fees correctly total \$25,713.00. (See Opp. 4:16-17.) Invoices for deposition costs are reported in Exhibit 3 which totals \$25,712.25 [\$ 1,409.50 (Deposition of Jaymen Tinsley) + \$2,298.50 (certified copy transcripts, Video in the amount of 1 for Elizabeth Barquero on Jun. 05, 2025) + \$692.00 (non-appearance) + \$2,861.40 (certified copy transcripts, video in the amount of 1 for deposition of Elizabeth Barquero as PMK on Jun. 30, 2025) + \$692.00 (non-appearance) + \$350.00 (transcript fee for Nicholas Huelster on Nov. 11, 2022) + \$728.35 (non-appearance) + \$425.75 (digital bundle for Andrew Conteh on Jan. 17, 2023) + \$1,578.70 (deposition of Jayquan Crittenden Volume 1) + \$977.00 (video for Jayquan Crittenden Volume I) + \$2,395.10 (deposition of Jaymen Tinsley) + \$1,595.00 (video for Jaymen Tinsley) + \$563.40 (non-appearance) + \$563.40 (non-appearance) + \$325.00 (cancellation of services) + \$807.00 (non-appearance) + \$1,817.90 (deposition of Raima Stelly) + \$1,373.00 (video for Raima Stelly) + \$707.40 (non-appearance) + \$410.00 (non-appearance) +

\$432.40 (non-appearance) + \$325.00 (cancellation of video) + \$325.00 (cancellation of services) + 325.00 (cancellation of video) + \$710.20 (non-appearance) + \$325.00 (cancellation of service) +\$700.40 (non-appearance)]. Finally, as to service of process costs, La Brea Regency, Sabet Management, Edward, Andre, and Andre Management present that the service of process costs correctly totals \$5,423.82. (See Opp. at 7:4-6.) This is evidenced by Exhibit 4 which totals \$5,423.82 [\$227.50 (subpoena to Liberty Tax) + \$206.50 (custodian of record fee re: LAPD) + \$211.50 (subpoena to Cedars-Sinai Medical/Radiology) + 211.50 (subpoena to Cedars-Sinai/Billing) + \$211.50 (subpoena to Cedars-Sinai/Radiology) + \$211.50 (subpoena to Cedars-Sinai/Billing) + \$211.50 (subpoena to Cedars-Sinai Medical Center) + \$211.50 (subpoena to Cedars-Sinai/Billing) + \$257.50 (subpoena to Amazon.com re: payroll) + \$257.50 (subpoena to Liberty Tax re: Payroll) + \$664.35 (service of process to Raima Stelly) + \$1,133.47 (subpoena to Amazon.com in Washington re: payroll) + \$171.50 (subpoena to Cedars-Sinai Medical Center) + \$171.50 (subpoena to Cedars-Sinai Medical Center/Billing) + 171.50 (subpoena to Cedars-Sinai Medical/Radiology) + \$171.50 (subpoena to Cedars-Sinai Medical Center) + \$171.50 (subpoena to Cedars-Sinai/Billing) + \$171.50 (subpoena to Cedars-Sinai/Radiology) + \$171.50 (subpoena LAPD) + \$207.50 (subpoena to Amazon.com Sacramento)].

In

Reply, Plaintiffs highlight that La Brea Regency, Sabet Management, Edward, Andre, and Andre Management have conceded that the correct figures for costs are lower than what the Costs Memorandum stated. Plaintiffs seek to tax: (1) the ex parte applications for filing and motion fees; (2) all certifications of non-appearance and cancellation of services, convenience charges, and videotaping costs for depositions; and (3) subpoenas for records as they do not constitute service of process and data migration regarding LAPD, and duplicative records.

The

Court declines to tax the ex parte filing fees. As is, the amount taxed for motion and filing fees is \$2,253.57 [\$5,284.14 - \$3,030.57].

Regarding

depositions, Code of Civil Procedure section 1033.5 provides:

(a) The following items are allowable as costs under Section 1032:

(3)(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed.

Non-appearance

fees, cancellation fees, and reporter convenience fees are not explicitly stated in Code of Civil Procedure section 1033.5, which leaves the matter to the Court's discretion. (Code Civ. Proc. § 1033.5(c)(4).) The Court allows these fees as they were reasonably incurred and the depositions were necessary to the conduct of this litigation. Accordingly, the amount taxed for deposition fees is \$18,400.05 [\$44,112.30-\$25,712.25].

Regarding

service of process fees, at least three courts have concluded that Civil Discovery Act contemplates that discovery conducted by way of a business records subpoena is a "deposition." (See *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 131; *California Shellfish Inc. v. United Shellfish Co.* (1997) 56 Cal.App.4th 16; *Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571.) Code Civ. Proc. § 1033.5 allows "[t]aking, video recording, and transcribing necessary depositions ... and travel expenses to attend depositions." (See *id.* at (a)(3).) Except as provided in Code of Civil Procedure section 2025.280, subd. (a), the process by which a nonparty is required to provide discovery is a deposition subpoena. (Code Civ. Proc., §§ 2020.410, subd. (c), 2020.430, subs. (a)–(e)). Thus, while such fees may not constitute service of process, they are allowable under deposition costs.

The

Court agrees that the data migration from Los Angeles Police Department ("LAPD") invoice should be taxed (\$206.50) as there is already another invoice for records from LAPD.

The

Court taxes the service of process fees in the amount of \$1,297.49 [\$6,927.81 - \$5,423.82 - \$206.50], as there appears to have been an excessive number of subpoenas served on various Cedars Sinai departments.

Accordingly,

Plaintiffs' Motion to Tax is granted.

Conclusion

Plaintiffs

Jaymen Tinsley and Jayquan Crittenden's Motion to Tax is granted.

The

Court taxes the following items: (1) Motion and Filing Fees in the amount of \$ 2,253.57; (2) Deposition Fees in the amount of \$18,400.05; and (3) Service of Process Fees in the amount of \$1,297.49.

Date: 07/22/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Defendants Edward Sabetfard, Andre M. Sabetfard, and Alfred Sabetfard share the same surname. The Court addresses each individually by their first name for the purpose of clarity. No disrespect is intended.